

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

-----X **Index No.** _____
LORIE AGOSTO AND COREY GARCIA, **Purchased** _____
Plaintiffs **Plaintiff designates New York**
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
SGT. JOSE CAPELLA,
P.O. MOAHMMAD UDDIN,
P.O. JOHN DOE,**

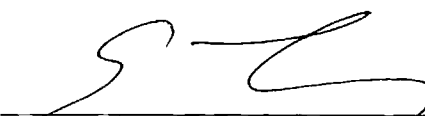
Defendants.

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 29, 2018



ERIC D. LEVY, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(646) 755-8020

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY****-----X
LORIE AGOSTO AND COREY GARCIA,****Plaintiffs,****Index No.****- against -****Complaint****THE CITY OF NEW YORK,
SGT. JOSE CAPELLA,
P.O. MOAHMMAD UDDIN,
P.O. JOHN DOE,****Defendants.****-----X**

Plaintiffs LORIE AGOSTO AND COREY GARCIA, by their attorney ERIC D. LEVY, ESQ., principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff LORIE AGOSTO AND COREY GARCIA ("MS. AGOSTO AND MR. GARCIA") were residents of Bronx County, City and State of New York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant SGT. JOSE CAPELLA, ("CAPELLA") was and still is a police officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to March 25, 2017, CAPELLA was employed by Defendants CITY and NYPD and was assigned in the Borough and County of New York, City and State of New York.

5. The actions of CAPELLA described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

6. At all times hereinafter mentioned, Defendant P.O. MOAHMMAD UDDIN, ("UDDIN") was and still is a police officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

7. On and prior to March 25, 2017, UDDIN was employed by Defendants CITY and NYPD and was assigned in the Borough and County of New York, City and State of New York.

8. The actions of UDDIN described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

9. At all times hereinafter mentioned, Defendant P>O> JOHN DOE, ("DOE") was and still is a police officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

10. On and prior to March 25, 2017, DOE was employed by Defendants CITY and NYPD and was assigned in the Borough and County of New York, City and State of New York.

11. The actions of DOE described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of

Defendants CITY and NYPD.

BACKGROUND

12. On or about March 25, 2017, CAPELLA, UDDIN AND DOE acting as agents, servants and employees of Defendants CITY and NYPD, without just cause or provocation, assaulted MS. AGOSTO by throwing her to the floor pulling her hair and causing a laceration in her left buttock requiring medical attention and sutures to close, AND assaulting and intentionally and falsely accusing MR. GARCIA of having committed the crime of Assault in the Second Degree (P.L. § 120.05) and other related charges.

13. On or about March 25, 2017, Defendants, their agents, servants and/or employees, intentionally placed MR. GARCIA under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

14. On or about March 26, 2017, a felony complaint was issued at the directive of Defendants, under docket No. 2017NY0018065, and a criminal action against MR. GARCIA was commenced.

15. After his arrest on March 25, 2017, MR. GARCIA was detained by Defendants until he was released on his own recognizance, by the court on or about March 26, 2017.

16. On or about August 15, 2017, MR. GARCIA made a court appearance during which the criminal matter was terminated in favor of MR. GARCIA, in that all charges were dismissed and the records sealed.

17. As a result of the treatment of MS. AGOSTO AND MR. GARCIA by the

Defendants, MS. AGOSTO AND MR. GARCIA were denied liberty by being falsely arrested and imprisoned.

18. MS. AGOSTO AND MR. GARCIA suffered emotional injuries due to the conduct of the Defendants. As a result of being assaulted and falsely arrested and detained, MS. AGOSTO AND MR. GARCIA suffered humiliation, fear for theirs safety and other emotional distress.

PROCEDURAL POSTURE

19. On April 17, 2017, MS. AGOSTO served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

20. On August 25, 2017, MR. GARCIA served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

21. More than thirty days have elapsed since service of said notices, and Defendant CITY has failed to pay or adjust the claim.

22. This action has been commenced within one year and ninety days after the cause of actions of Plaintiffs accrued.

23. Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.

35. On or about March 25, 2017, and from that time until August 15, 2017, when MR. GARCIA'S case was dismissed upon the District Attorney's application, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, NEW YORK COUNTY, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York; by lying in the grand jury; cause, through manipulation and coercion, civilian witnesses to falsely identify Plaintiff as a participant in a crime and cause said civilian witnesses to lie in the grand jury about Plaintiff's participation in a crime.

36. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff.

37. The commencement of these criminal proceedings under Docket No. 2017NY018065 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

38. As a result of being maliciously prosecuted by the Defendants, MR. GARCIA was deprived of his liberty and suffered the humiliation, mental anguish,

indignity and frustration of an unjust criminal prosecution.

FIFTH CAUSE OF ACTION: NEGLIGENCE

39. Paragraphs 1-38 are incorporated by reference as though fully set forth herein.

40. At all times hereinafter mentioned, the aforesaid assault and battery, false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

41. As a result of the negligence of the Defendants, MS. AGOSTO AND MR. GARCIA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for each of their safety.

42. Although MS. AGOSTO was not committing any crime nor about to commit a crime, defendants threw MS. AGOSTO to the floor and jumped on top of her and MR. GARCIA; solely by the negligence of the defendants, MS. AGOSTO suffered a laceration to her left buttocks which required seven sutures to close.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

44. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training, CAPELLA, UDDIN AND DOE, as well as all of the other NYPD officers involved in this matter.

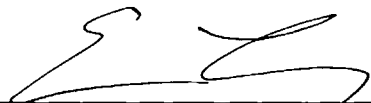
45. Defendants CITY and NYPD have grossly failed to train and properly

forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
 March 29, 2018

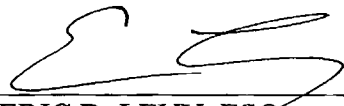
Yours, etc.,

A handwritten signature in black ink, appearing to read "Eric D. Levy", is written over a horizontal line.

ERIC D. LEVY, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
646-755-8020

CERTIFICATION

I, ERIC D. LEVY, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).


ERIC D. LEVY, ESQ.